

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RAQYA ALSAIFI,

Petitioner

VS.

DAWIT ABEBE,

Respondent

) Case Number: FDI-24-800647

) Hearing Date: July 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: POST-JUDGMENT REQUEST FOR ADJUDICATION OF OMITTED
ASSET UNDER FC 2556

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Raqya Alsaifi (Mother) and Respondent Dawit Abebe (Father) married on 6/5/2021 and separated on 5/12/2024, for a marriage of 2 years and 11 months. The parties have one minor child, Amir (DOB: 8/24/2023, age 2). Both parties are self-represented.
- 2) On 9/25/2024 in related Case No. FDV-24-817760, the Court issued a 1-year Domestic Violence Restraining Order After Hearing for Mother's protection against Father. The DVRO awards Mother sole legal and sole physical custody of Amir and provides for supervised visitation for Father at Rally.
- 3) On 5/19/2025, Father's default was entered after he did not file a Response to the Petition.
- 4) On 6/12/2025, a True Default Judgment was entered which terminates the Court's jurisdiction to award spousal support to either party, reserves jurisdiction over child support, and divides community property and debts. The Judgment also requires Father to pay Mother an equalization payment of \$16,680 in installments of \$2,000 per month.

- 1 5) On 6/26/2025, the FDV case was consolidated into and under this FDI case.
- 2 6) On 10/7/2025, the San Francisco City and County Employees' Retirement System (SFERS) was
- 3 joined as a party to this proceeding.
- 4 7) On 11/25/2025, the City and County of San Francisco Deferred Compensation Plan was joined as
- 5 a party to this proceeding.
- 6 8) On 12/24/2025, the Court granted an Order to Renew Domestic Violence Restraining Order,
- 7 extending the expiration date of the restraining order to 12/24/2030.
- 8 9) Now on for hearing is Mother's Request for Order filed 5/28/2026. Mother states that when she
- 9 applied for the True Default Judgment, she included all assets and debts known to her. Mother
- 10 states she subsequently learned that Father holds a retirement account with the San Francisco City
- 11 and County Employees' Retirement System. Mother states she contacted the QDRO Center for
- 12 assistance with preparing a QDRO to divide a different, known retirement account in Father's
- 13 name and she was told that Father would also have been enrolled in SFERS "due to his job at
- 14 Laguna Honda." Mother states, "They wrote to the Plan and confirmed his enrollment. I am
- 15 informed and believe he enrolled sometime in 2023." Mother asks the Court to adjudicate the
- 16 SFERS retirement account under Family Code section 2556.
- 17 10) Per the Proof of Service filed 6/4/2026, Mother's Request for Order and the Tentative Ruling
- 18 Instructions were mailed to the address the Court has on file for Father on 6/1/2026.
- 19 11) Father did not file a Responsive Declaration.

20 **B. Findings and Order**

- 21 1) Family Code section 2556 provides, "In a proceeding for dissolution of marriage, for nullity of
- 22 marriage, or for legal separation of the parties, the court has continuing jurisdiction to award
- 23 community estate assets or community estate liabilities to the parties that have not been
- 24 previously adjudicated by a judgment in the proceeding. A party may file a postjudgment motion
- 25 or order to show cause in the proceeding in order to obtain adjudication of any community estate
- 26 asset or liability omitted or not adjudicated by the judgment. In these cases, the court shall equally
- 27 divide the omitted or unadjudicated community estate asset or liability, unless the court finds
- 28 upon good cause shown that the interests of justice require an unequal division of the asset or
- 29 liability."

- 2) Mother's request for the Court to adjudicate the community interest in Father's SFERS plan is hereby granted. The community interest in the SFERS plan shall be divided equally.
- 3) Mother shall contact SFERS Member Services to determine if they have a model Domestic Relations Order (DRO) that can be used to divide the community interest in the SFERS plan. If they do not, the parties shall share equally the cost for preparation of the DRO.
- 4) The Court will set a review hearing of **Thursday, 10/22/2026 at 9:00 AM in Dept. 404.**
- 5) At least 10 calendar days prior to the next hearing date, Mother may file and serve (and file a Proof of Service demonstrating service of) a declaration to which she attaches a proposed DRO for SFERS. If Mother incurred fees to have the DRO prepared, she may request reimbursement from Father in her declaration and Mother shall attach proof of payment of the fees for the DRO preparation.
- 6) The Court will prepare the Findings and Order After Hearing.